CITY OF GROVER BEACH
FULL TEXT OF MEASURE A-26

INITIATIVE MEASURE TO BE SUBMITTED DIRECTLY TO THE VOTERS TO REQUIRE THE OFFICE OF THE CITY CLERK TO BE AN ELECTED POSITION

THE PEOPLE OF THE CITY OF GROVER BEACH DO ORDAIN AS FOLLOWS:

SECTION 1. The Office of the City Clerk shall be an elected position. This measure supersedes and repeals any prior question approved by voters designating the office as appointive.

SECTION 2. The City Clerk shall be the city elections official having jurisdiction over elections and related matters within the city.

SECTION 3. Within ninety days of the adoption of this Measure, the City Council shall call a special election to be held on the next lawfully available established election date pursuant to Chapter 4 of Division 1 of California Elections Code, which may be consolidated with any other election as provided by law, to fill the office of City Clerk until the next succeeding General Municipal Election.

SECTION 4. At the next succeeding General Municipal Election referenced in Section 3 of this Measure, the election for City Clerk shall be for a full four-year term of office. The election of the City Clerk shall be held every four years thereafter as provided by law.

SECTION 5. This measure may not be amended, except upon voter approval.

SECTION 6. Each provision of this ordinance is severable, and the invalidity of any section or part thereof shall not affect the validity of its other provisions.

If a majority of qualified electors voting on such measure shall vote in favor of City of Grover Beach Initiative Measure “A-26”, it shall be deemed ratified and shall read as provided above.

IMPARTIAL ANALYSIS OF MEASURE A-26

Initiative Measure A-26 asks the voters whether the City of Grover Beach City Clerk shall be an elected position for a four-year term of office.

Proposed Initiative Measure. On March 14, 2024, a citizen's ballot initiative was proposed to make the City of Grover Beach City Clerk an elected position for a four-year term of office. The initiative petition gathered sufficient signatures for placement on the ballot and was certified by the Deputy City Clerk of the City of San Luis Obispo given the conflict of interest with the currently appointed City Clerk validating signatures for this initiative.

Background. State law requires all cities to have a City Clerk and the position may be elected or appointed. Since the City's incorporation in 1959, the City Clerk has been an appointed position similar to other cities in San Luis Obispo County and approximately 70% of cities in California. This approach enables cities to openly recruit individuals for this appointed role based on technical qualifications and skills necessary for the role.

Effect of Measure.

A "yes" vote on this measure means the City Clerk position will become an elected position with a four-year term. A "no" vote on this measure means the City Clerk position will remain an appointed position.

The City Clerk's responsibilities include keeping accurate records of City Council proceedings; recording, publishing, and certifying City ordinances and resolutions; keeping custody of the City seal; and administering oaths of office. The City Clerk also serves as the City's elections official; collects and maintains all candidate campaign finance forms; coordinates, records, and retains City officials' and City staff's statements of economic interests; and helps ensure compliance with the state's open meeting laws. An elected City Clerk may appoint deputies to assist in performing the functions and responsibilities of the City Clerk.

This measure invites Grover Beach's electorate to weigh the benefits of electing a City Clerk against the tradition and current practice of appointment. Approval of the measure would require the City to hold a special election within 90 days to fill the office of City Clerk until the next succeeding General Municipal Election where the position would be elected for a four-year term.

THE ABOVE STATEMENT IS AN IMPARTIAL ANALYSIS OF INITIATIVE MEASURE A-26. IF YOU DESIRE A COPY OF THE FULL TEXT OF THE MEASURE, PLEASE CALL THE CITY CLERK, WENDI SIMS, AT 805-473-4568 OR EMAIL AT wsims@groverbeach.org AND A COPY WILL BE MADE AVAILABLE TO YOU AT NO COST.

s/ Jennifer Thompson, City Attorney

ARGUMENT IN FAVOR OF MEASURE A-26

The City Clerk, as the Elections Officer, manages the process that forms the foundation of our democratic system of government, enabling the public to fully participate in the governmental process by providing accurate information and services in a professional manner. The Clerk manages public inquiries and relationships by providing access to city records and local legislation. The Clerk ensures that City Council actions comply with federal, state, and local transparency, conflict-of-interest, ethics, and open-meetings laws, and that all actions are properly executed, recorded, and archived.

To fulfill this critical role, the city clerk must be free to honor the public trust without interference from city officials or the threat of losing his or her job if the clerk's duties conflict with the wishes of the Council or Staff. Currently, as a city manager appointee, the clerk faces a conflict of interest: the clerk depends on the council-appointed city manager for employment.

That conflict of interest has plagued Grover Beach. In 2024, our City Clerk and City Officials were found guilty of violating California Election Code for blocking a citizen ballot measure. Even after being commanded by a San Luis Obispo Superior Court Judge to allow the measure to move forward, the Clerk disobeyed, releasing it a day after the judge's deadline. The City Clerk consistently makes errors on citizen ballot measures, waits until the last minute to respond to voter deadlines and public records requests, and fails to provide cover, leaving citizens to wait, sometimes for hours, for clerk service.

An elected City Clerk answers to the Voters and gives us a direct say in who administers our democratic processes. Vote YES on A-26 to Elect the Grover Beach City Clerk.

s/ Andrea Seastrand
Proponent/former Congresswoman, Grover Beach resident

s/ Debbie Peterson
Proponent/former Mayor, Grover Beach resident

ARGUMENT AGAINST MEASURE A-26

The City Clerk is a full-time role that oversees elections, maintains official records, ensures compliance with complex state laws, and supports transparent government. These responsibilities require someone with technical knowledge, proven experience, and appropriate temperament.

Since our city's incorporation in 1959, Grover Beach has appointed qualified, nonpartisan professionals to serve as City Clerk. This ensures access to a nationwide pool of highly-trained applicants who are vetted through a rigorous and competitive hiring process. Once hired, they are accountable through our city's formal management structure and the elected City Council. More than 70% of California cities, including every city in San Luis Obispo County, fill the City Clerk position by appointment.

Measure A-26 is an unnecessary and ill-advised change that would make the City Clerk an elected position. The consequences would be serious and expensive. Among them:

1. It shrinks the pool of potential applicants from nationwide to only registered Grover Beach voters.
2. It throws out requirements of competency, experience, and temperament. The candidate need only be 18 years old or older with campaign skills and popularity and no guaranteed ability to do the job.
3. It requires a special election in 2027 with an estimated cost to taxpayers of over $300,000 in funds not available for essential services like public safety, street maintenance, or other needs.
4. It permanently increases ongoing personnel costs and election expenses to the city budget.
5. It does not guarantee that the City Clerk will be non-political and capable of performing the job with objectivity and consistency.

Appointing the City Clerk has served Grover Beach effectively for more than six decades. Let's keep the focus on qualifications, keep politics out of this important role, and avoid needless additional costs.

Vote NO on Measure A-26.

s/ Karen Bright

s/ Cynthia Brown

s/ Rachel Mann

s/ Jessica Matson

s/ Robert Perrault

REBUTTAL TO THE ARGUMENT IN FAVOR OF MEASURE A-26

In making the City Clerk an elected official, Measure A-26 undercuts the proponents' primary reason for it as it does not make the City Clerk more accountable. In addition, the required special election will cost you, the taxpayer, an estimated $300,000.

An elected City Clerk can only be removed by a regular or recall election. A recall election would require the City to pay extra for another individual to conduct the election given the conflict of interest.

In contrast, an appointed City Clerk is managed, and may be disciplined or removed, by the City Manager through the City's normal management structure. The City Clerk operates at the direction of the City Manager who follows the direction of the duly-elected City Council. This accountability is more timely and fair.

Furthermore, the proponents of Measure A-26 mischaracterize a court decision on a procedural dispute as a criminal conviction. The dispute was over the City's role in ensuring the text of a ballot measure does not contain false or misleading statements. The judge ruled the City should have taken their concerns to the court first rather than rejecting the petitions. The City complied and the original text was published.

Voters may review legal documents and the City Attorney's summary for themselves: https://www.grover.org/759/2024-Recall

Grover Beach deserves a City Clerk hired for expertise and held accountable through an orderly, professional, and cost-effective process. Let's not incur the $300,000 required by this measure.

s/ Karen Bright

s/ Rachel Mann

s/ Robert Perrault

s/ Cynthia Brown

s/ Jessica Matson

REBUTTAL TO THE ARGUMENT AGAINST MEASURE A-26

The people who oppose electing the Grover Beach City Clerk are the same people who faced recall in 2024 and voted to violate election law and were found guilty by the SLO Superior Court. They speak of a "national pool" of potential city clerks. They say we can't find competent, experienced people with the right temperament to be our City Clerk, but they don't tell you that Grover Beach has always hired local Clerks because our elections are governed at the city and state level. They tell you it's political, but the clerk is a non-partisan position. They threaten the high cost of an election that could be consolidated with other elections and the cost reduced. And what is more important than an election in which you, the voters, determine who will serve the people and answer to them as their City Clerk? It would be a breath of fresh air to have a City Clerk from Grover Beach when nearly all other senior staff live outside Grover Beach. We believe the voters of Grover Beach are competent to find and elect an experienced, skilled City Clerk who will protect the public trust.

s/ Andrea Seastrand
Former Congresswoman and Resident of Grover Beach

s/ Debbie Peterson
Former Mayor and Resident of Grover Beach